

23STCV14896 23STCV14896

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23STCV14896 Hearing Date: July 21, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:09 PM on July 20, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 20, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff

alleges medical negligence against Defendants in connection with alleged unreasonable delay and failed management in the diagnosis, care and treatment of maxillary sinusitis and subdural empyema resulting in worsening of his condition and advancing into his brain.

Defendants Cedars-Sinai Medical

Center and Kaytlena Stillman, M.D. move to compel Plaintiff, Colin Yeo, to comply with a second neuropsychological examination relative to his mental condition and treatment at issue.

TENTATIVE RULING

Defendants Cedars-Sinai Medical Center and Kaytlena Stillman, M.D.'s motion to compel a second neuropsychological examination is DENIED without prejudice.

ANALYSIS

Motion To Compel
Second Neuropsychological Examination

Discussion

The Court
has reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Defendants Cedars-Sinai Medical
Center ("Cedars") and Kaytlena Stillman, M.D. move to compel Plaintiff, Colin Yeo, to comply with a second neuropsychological examination relative to his mental condition and treatment at issue.

Defendants argue that there is
sufficient good cause to allow clinical neuropsychologist, Oren Boxer, Ph.D., to conduct a second neuropsychological examination of Plaintiff because he has placed his personality changes and social emotional impairment in controversy in the present litigation. Dr. Boxer has expertise in treating conditions such as Attention Deficit Hyperactivity Disorder and Autism Spectrum Disorder. (Exhibit 4, Decl. of Thames, ¶ 11.) Defendants argue that the examination by Dr. Boxer, is necessary to evaluate: (1) the nature and extent of any current neuropsychological, behavioral, or emotional condition; (2) the extent, if any, to which any such condition existed prior to and independent from the incident at issue; and (3) prognosis and evidence-based treatment recommendations.

Defendants

argue:

Good cause exists for a second neuropsychological examination by Dr. Boxer to evaluate Plaintiff's prior and current status, and potential future needs to the extent of any diagnosed condition, prognosis, and evidence-based treatment modalities, given that Plaintiff is seeking damages exceeding \$10,000,000. Plaintiff alleges he suffered brain injury from a subdural hematoma that prompted treatment by craniotomy, resulting in physical and mental manifestations of injury as the basis for claims of damages. The physical and mental condition of Plaintiff is in controversy in this matter. The assessment of the significance of the subdural hematoma and the treatment of it is complicated by evidence that Plaintiff already had disorders producing behavioral dysfunction prior to the events at issue and that such disorders were of a nature that were expected to persist for Plaintiff's lifetime. Dr. Boxer, is a licensed clinical neuropsychologist who specializes in pediatric neuropsychological disorders, learning disorders, and behavioral/emotional regulation disorders. He will examine Plaintiff to evaluate his claimed personality changes and social emotional impairment.

As for

the first examination, two sessions of the examination were performed by April Thames, Ph.D., on January 21, 2025, and January 28, 2025. Dr. Thames, a clinical psychologist with subspecialty training in clinical neuropsychology, opined that "to a reasonable degree of neuropsychiatric certainty that Colin's ADHD and ASD diagnoses were present before his brain injury and not caused by any alleged damages in this case." (Exhibit 3, IME Report, 11.) Based on her evaluation, Dr. Thames, recommended plaintiff to be seen by a neuropsychologist who specializes in assessment and treatment of behavioral dysregulation disorders. Dr. Boxer is qualified in that specialty, has expertise in assessing and treating behavioral dysregulation disorders, such as Attention Deficit Hyperactivity Disorder and Autism Spectrum Disorder. (Exhibit 4, Decl. of Thames, ¶ 11.)

Plaintiffs

argue:

The defendants agreed, in November 2024, that there would be only one defense neuropsychological

examination. They have not moved for relief from that stipulation.

Shapira v. Superior

Court, 224 Cal.App.3d 1249, 274 Cal.Rptr. 516 (1990), upon which the defendants rely heavily, is inapposite. That case dealt with experts in different fields. Here, Dr. April Thames and Dr. Oren Boxer are both neuropsychologists.

The defendants' stated reason for the second examination — that it would be “in the best interests of Colin and his family” — is manifestly insufficient to satisfy the requirement of a strong showing of good cause for the extraordinary step of a second neuropsychological examination. The defendants do not have Colin's best interests in mind.

The defendants fail to identify the specific tests that Dr. Boxer wants to administer to Colin, in violation of Code of Civil Procedure section 2032.310(b).

The defendants' motion insinuates that they now believe that Dr. Thames is not the right expert for this case. If the defendants believe they chose incorrectly, they still cannot shift to Colin and his mother the burden of correcting that error.

The defendants fail to explain — through admissible expert testimony — what they expect to gain from 13 additional hours of neuropsychological testing and an additional 2 hour interview. The defendants seek to impose an unnecessary and unfair burden on Colin and on his mother.

Defendants' Reply:

Cedars was not a party to the stipulation Plaintiffs assert.

To the extent that Plaintiffs are asserting a privacy interest, there is not a compelling interest for plaintiff avoid an examination that is meant to address the key issue in the case; the extent of any brain injury he suffered from a subdural empyema, an infection and abscess of the brain. With that issue of brain injury as the focal point of the dispute, the mental condition of plaintiff, as it existed

before and after the alleged negligence is crucial to the just determination of damages at stake in the action.

Court's analysis:

Civ. Proc.

Code, § 2032.020(a) provides in relevant part:

(a) Any party may obtain discovery, subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by means of a . . . mental examination of (1) a party to the action, . . . in any action in which the mental . . . condition . . . of that party . . . is in controversy in the action.

(Civ.

Proc. Code § 2032.020(a).)

Civ.

Proc. Code, § 2032.310 provides:

(a) If any party desires to obtain discovery by . . . a mental examination, the party shall obtain leave of court.

(b) A motion for an examination under subdivision (a) shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination. The motion shall be accompanied by a meet and confer declaration under Section 2016.040.

(c) Notice of the motion shall be served on the person to be examined and on all parties who have appeared in the action.

(Code Civ. Proc., § 2032.310.)

Civ. Proc. Code, §

2032.320 provides in pertinent part:

(a) The court shall grant a motion for a physical or mental examination under Section 2032.310 only for

good cause shown.

. . .

(d) An order granting a physical or mental examination shall specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination.

. . .

(Civ. Proc. Code, § 2032.320(a) & (d).)

Civ.

Proc. Code, § 2032.020(c)(1) provides:

“A mental examination conducted under this chapter shall be performed only by a licensed physician, or by a licensed clinical psychologist who holds a doctoral degree in psychology and has had at least five years of postgraduate experience in the diagnosis of emotional and mental disorders.”

(Code Civ. Proc, § 2032.020(c)(1)[bold emphasis added].)

A

plaintiff's mental condition is only “in controversy” in the action for purposes of an IME if the plaintiff claims that emotional distress is continuing/ongoing, not if it is only in the past. (Doyle v. Superior Court (1996) 50 Cal.App.4th 1878, 1883-87.) Here, Plaintiff has chosen to place his mental condition in controversy in this action. (Civ. Proc. Code, § 2032.020(a).) “The court shall grant a motion for a physical or mental examination under Section 2032.310 only for good cause shown.” (Code Civ. Proc. § 2032.320(a).)

The stipulation to which Plaintiffs refer was entered into on November 15, 2024. (Opposition, Declaration of Steven B. Stevens, Exh. 3.) This stipulation was signed by Attorney Hao Wu of R.J. Ryan Law, APC. As Defendants point out, attorney Wu and R.J. Ryan Law represented PM Pediatrics of California (sued as PM Pediatric Urgent Care) and Jennifer Samuels, NP at that time.

Moving Defendants Cedars-Sinai Medical Center and Kaytlena Stillman, M.D. were named as the primary Defendant in the original Complaint, but were represented by Kelly, Trotter & Franzen at the time an Answer was filed on their behalf, and are still represented by that law firm as of the date of this motion. As such, these moving Defendants are not parties to the stipulation and are not bound by it.

Shapira

held that there is no numerical limit on the number of mental examinations which may be ordered by a trial court on a showing of good cause. (Shapira v. Superior Court (1990) 224 Cal.App.3d 1249, 1254-1256.) Thus, whether or not the mental examinations are by examiners in the same or different.

On the other hand the Court finds that Defendants have not demonstrated good cause for a second examination. In her Declaration attached to the motion, Dr. Thames does not explain why should could not perform the tests which Defendant now seek to have Dr. Boxer perform. Dr. Thames' Declaration does not indicate her diagnosis, nor why there is good cause of the second examination by Dr. Boxer.

Moreover, the Court agrees with Plaintiffs that Defendants fail to identify the specific tests that Dr. Boxer wants to administer to Colin.

In Carpenter

v. Superior Court (Yamaha Motor Corp., USA) (2006) 141 Cal.App.4th 249, the court held that § 2032.320 requires a court "to describe in detail who will conduct the examination, where and when it will be conducted, the conditions, scope and nature of the examination, and the diagnostic tests and procedures to be employed.

The way to describe these 'diagnostic tests and procedures'—fully and in detail—is to list them by name." (Id. at 260-62.) Defendants have failed to do this. Such description and an explanation is appropriate where Defendants seek to subject Plaintiff to 13 additional hours of neuropsychological testing and an additional 2 hour interview.

As such, Defendants have not demonstrated good cause, nor met the requirement of Code Civ. Proc. § 2032.320. The motion to compel a second neuropsychological examination is DENIED without prejudice.